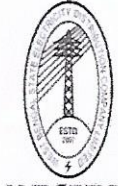


West Bengal State Electricity Distribution Company Limited

(A Government of West Bengal Enterprise)

MALDA REGIONAL OFFICE,
Administrative Building (WBSEDCL), 1st Floor, Rabindra Avenue, Malda-732101
Phone:03512-220456, e-mail: rm.malda@wbasedcl.in
Regd. Office: VidyutBhavan, Block-DJ, Sector-II, Bidhannagar, Kolkata-700 091.
CIN:U40109WB2007SGC113473, www.wbasedcl.in



WBSEDCL

Memo no. RM/MRO/Tender/Dept/ **1235**

Dated: 18.02.2026

M/S TARUN ENTERPRISE (Vendor Code: 512589)
VILL UTTAR SONAKHALI PO: NARAYANTALA,
PS- BASANTI, DIST.- SOUTH 24 PARGANAS,
WEST BENGAL PIN 743329
Mail Id: tarunenterprise.elect@gmail.com
Mobile No: 8101296859.

Subject: Letter of Award (LOA) for Turnkey execution of "Replacement of existing overhead 11 kV distribution lines with underground cables and other allied works in English Bazar Municipality area alongwith area attached to KPS 33/11 KV Substation (Malda District) under the jurisdiction of Malda Division of WBSEDCL through turnkey mode".

Ref: 01. Tender No.09/Departmental (2025-26) Date: 19.11.2025.
02. Tender ID: 2025_WBSED_953677_1
03. Estimated Cost: ₹ 29,76,94,475.20/-
04. Your bid no 7630517dated 15.12.2025.
05. Technical Bid Opened On 18.12.2025.
06. Price Bid opened on 09.02.2026.

Dear Sir(s),

With reference to above, the WBSEDCL is pleased to accept your tender and place an order with you for the execution of the work as per terms, price and conditions mentioned hereunder:

Sl No	Name of the work	Order Amount including Supply & Erection	Description of works	PO Value (Rs.)
01	Replacement of existing overhead 11 kV distribution lines with underground cables and other allied works in English Bazar Municipality area alongwith area attached to KPS 33/11 KV Substation (Malda District) under the jurisdiction of Malda Division of WBSEDCL through turnkey mode.	₹ 31,14,18,190.52/- including 1% cess but, excluding GST	Supply of electrical equipment (detail SOW attached from Part A- SL NO.1-15)	20,22,46,617.70
02	(Detailed scope provided under BOQ/SOW)		Erection works (detail SOW attached from Part B- SL NO.16-36)	10,91,71,572.82

The work shall be executed strictly in accordance with the specification and instruction of the Controlling Officer/Technical Officer/Nodal Officer/Supervising Officer or their authorised representative.

TERMS AND CONDITIONS:

1. Completion of Time: The work is to be completed in all respect within 12(Twelve) months from the date of issuance of LOA, while portions of work as per programme settled in consultation with the controlling officer shall be completed by the date stipulated in the programme. It is to be noted that time is the essence of the contract and any default on the part of the contractor to complete the work within the stipulated date/dates aforesaid or within the time as may be extended in writing by the controlling officer subject to the payment of liquidated damages, the company shall have the right, without prejudice to any other clauses, to terminate the contract forthwith and to take possession of balance work/ materials and have the same allotted to any other agency and the contractor shall be liable to compensate the loss that may be occasioned to the Company on that account. Any letter in writing by The Controlling Officer shall be treated as conclusive on behalf of the Company.

Security Deposit:

(A) **Against Supply of Materials:-** The security deposits in the form of Bank Guarantee in two parts of 5% each upon P.O value of **Rs.20,22,46,617.70 (i.e. BG value of Rs. 10112330/- in two parts)** should be furnished within a period of 30 days from the date of issue of the order to the paying Officer as per enclosed format. Thereafter one part will remain valid upto 06 (six) months from the date of completion of works and other parts will remain valid up to a period of 61 (sixty one) months from the date of completion of work. The security deposit may be in the form of bank guarantee issued by any scheduled bank of India duly approved by RBI in this regard, in which event it would be open to WBSEDCL or its designated Officers to prefer the claim for invocation/ encashment of the concerned bank guarantee within six months from the expiry of the period of such Guarantee. Accordingly, there should be a claim period of six months in each of the Bank Guarantee from the date of expiry of the validity. The BGs are to be extended/ revalidated by the bidder to maintain the above time schedule for delay in completion of the work due to any reason whatsoever. No claim shall be made against WBSEDCL i.r.o interest on security deposit. The performance guarantee can also be submitted through Pay order/Demand Draft/Bankers' cheque also drawn in favour of "West Bengal State Electricity Distribution Co. Ltd" payable at Malda on any scheduled bank.

(B) **Against Erection Work:-** The security deposits in the form of Bank Guarantee of 10% of the P.O. value of **Rs.10,91,71,572.82(i.e. BG value of Rs. 10917157/-)** should be furnished within a period of 30 days from the date of issue of the order to the paying Officer as per enclosed format. Thereafter said Bank Guarantee will remain valid upto One Year or expiry of one full monsoon period, (i.e., from June to September whichever is later) from taking over of site by WBSEDCL. The security deposit may be in the form of bank guarantee issued by any scheduled bank of India duly approved by RBI in this regard, in which event it would be open to WBSEDCL or its designated Officers to prefer the claim for invocation/ encashment of the concerned bank guarantee within six months from the expiry of the period of such Guarantee. Accordingly, there should be a claim period of six months of the Bank Guarantee from the date of expiry of the validity. The BGs are to be extended/ revalidated by the bidder to maintain the above time schedule for delay in completion of the work due to any reason whatsoever. No claim shall be made against WBSEDCL i.r.o interest on security deposit. The performance guarantee can also be submitted through Pay order/Demand Draft/Bankers' cheque also drawn in favour of "West Bengal State Electricity Distribution Co. Ltd" payable at Malda on any scheduled bank.

(C) **The earnest money of ₹ 5,00,000 /-(Rupees Five Lakh Only) deposited vide Online Transaction Bank/UTR Number 11810085 of ICICI Bank (e-Procurement Ref. Number: 22840537630517) will be released on receipt of Security Deposit as per Clause No. 02 of the Order.**

3. Guarantee period/defect liability period:

- a) The defect liability period for **the supplied materials**, shall be considered as 60 (sixty) months from the date of taking over the site by WBSEDCL and any defects should be rectified to the satisfaction of the Engineer-in-Charge. All types of Manufacturer's guarantee/warranty wherever applicable are to be issued/revalidated in the name of the owner by the contractual agency.
- b) The defect liability period for **Erection Work**, shall be considered **One Year or expiry of one full monsoon period**, (i.e. from June to September **whichever is later**) **from the date of taking over the site by WBSEDCL** and any defects such as leakages in walls, dampness, defects in drainage etc. should be rectified to the satisfaction of the Engineer-in-Charge.

4. Materials: In case of supply of materials, it is mandatory to submit GTP, Drawings, type test, Make & Model, technical specifications from reputed manufacturer as per requirement of NIT and to be approved from the competent department of WBSEDCL. New materials & equipment to be supplied by you shall not enter WBSEDCL store. But dismantled materials pertaining to replacement, renovation etc., if any, must be returned to WBSEDCL Malda Divisional store on compliance of standing formalities.

- a) **INSPECTION & TESTING:** The materials/equipment shall be subjected to tests as per relevant Indian Standards and as per our technical specification. If the Indian Standard has the provision of routine tests, each material/equipment shall be subjected to those routine tests. In all such cases, while offering, test reports indicating the test results should be submitted in six copies to the Controlling Officer. Delivery of the material/equipment shall be done after having the dispatch clearance with approval of the supplier's test reports and the supplier should send intimation to the controlling officer regarding dispatch of materials immediately after dispatch. No extra cost shall be charged for the above tests. However, WBSEDCL reserves the right to depute its Engineers for carrying out inspection and testing on the offered lot as per relevant Indian Standards and our Technical Specification and also reserves the right to reject either raw materials or finished products found to be not complying with the requirement of the specifications and standards. The supplier shall give at least 15 (fifteen) days prior intimation about the readiness of the materials/equipment at the works for testing and inspection. The

supplier shall extend all facilities for such inspection and testing for which no extra cost shall be charged and the inspection report shall have to be signed jointly otherwise the offered lot(s) shall be treated as cancelled. WBSEDCL reserves the right to carry out in-house testing of the supplied materials at destination stores, in presence of authorized representative of the Contractor. In case they do not be present, company shall Test unilaterally and their result will be binding on them. In case the test results deviate from the inspection result carried out at Manufacturers' Works (more than 2% tolerance as per IS where ever applicable), the Company reserves the right to cancel the specific lot and in that event materials are to be replaced by the Contractor free of cost including the transportation from the site to their works and back.

- b) Addition and alteration of the work:** If during execution of the work some extra work which are not included in the schedule under the contract are required to be executed under instruction of the controlling/Supervising Officer, you shall have to take up such items of the work as per PWD Schedule of rates w.e.f. 01.11.2017 with subsequent corrigendum higher 4.61 % (Four point Six-one percent) applicable to the local district as per your tendered rate. In case the rates of such items of works are not available in the PWD Schedule of rates or SOW of the Order, the rate of such items would be derived on the basis of analysis of the breakup of rate submitted by you based on original vouchers and labour cost. The rates so derived will be final and binding on you.
- 5. Rate:** The quoted rate shall remain firm. The price variation shall be applicable as per IEEMA price variation formula with base date as on 01.11.2025 for Sl. No. 3 & 4 of Part-A of the SOW (Supply Items) attached with this document. The final price variation for the items (Sl. No. 3 & 4 of SOW) will be calculated as per IEEMA price variation formula prevailing at the time of scheduled delivery or actual delivery of the materials, whichever is less.
- 6. Variation:** You shall not modify the work except under direction in writing by the WBSEDCL. The quantities provided in the schedule of works are provisional only which may vary upto any extent or may be deleted altogether. The WBSEDCL reserves the right to alter, amend, omit or otherwise vary the quantities as may be necessary but **variation beyond 10% may be allowed after necessary concurrence of order approving authority.** Payment shall be made as per actual execution.
- 7. Night and Holiday work:** None of the permanent work related to the contract shall be carried out during the night or Sundays or other Holidays without prior permission of the Controlling/Supervising officer.
- 8. Labour Licence:** You will have to produce Labour Licence in respect of the above work as per Labour Act. 1970, before/during execution of the work.
- 9. Statutory minimum wages to the contract workers:** Wages of the workmen shall have to be disbursed as per minimum wages Act vis-à-vis revised from time to time by Notification of the Labour Department, Govt. of West Bengal and reimbursement of difference of wages beyond the usual half yearly revised rate and / or at any point of time by Govt. of West Bengal shall be made subject to production of authenticated documents towards payment of the same to the labourers along with statutory compliances. Necessary wage Register for this purpose shall have to be maintained by the Contractor. Payment of wages to the workmen engaged by the Contractor should be made in presence of the authorized representative as may be specified by the Controlling Officer who shall in turn duly authenticate and sign the Payment Register.
- 10. Insurance coverage for electrical Materials:** The successful bidder on awarding of contract shall arrange, secure and maintain all insurance as may be pertinent to the work and obligatory in terms of law to protect the interests of WBSEDCL against all perils. The form & the limit of such insurance together with underwriting in each case shall be acceptable to WBSEDCL. However, irrespective of such acceptance the responsibility to maintain adequate insurance coverage at all times during the period of contract shall be bidder's onus and will be in favour of WBSEDCL.
- 11. Insurance coverage for workmen's compensation:** You will have to make insurance policy covering provisions for workmen's compensation under workmen's compensation Act under rules made there under for all workmen to be engaged by you. In case of variation of strength of workmen during execution of work, additional coverage in the policy should be made forthwith. It is obligatory on your part to comply the workmen's compensation Act. You have to submit authenticated documents in this respect before payment of bill.
- 12. Programme of work:** You shall have to submit a programme of work duly supported by Bar Chart before start of execution for approval of the controlling officer.
- 13. Setting out:** The contractor shall be responsible for true and proper setting out of the works and for the correctness of position, level, dimensions or alignment of any part of the work. The contractor on being asked to do any rectification shall have to rectify the defects at his own cost.
- 14. Liquidated damages:** If the contractor fails to complete the work within the time prescribed herein or the extended time for completion, then the contractor shall pay to the WBSEDCL a sum amounting to ½ % (half percent) of the value of work as liquidated damages for such default for every week or part of a week which shall elapse between the time prescribed or extended time as the case may be and the date of completion of the works subject to a maximum of 10% (ten percent) of the total contract price with applicable GST. The WBSEDCL may without prejudice to any, all other method of recovery deducts the amount of such damages from any money in their hand due or which may become due to the contractor. The payment or deduction of such damages shall

not relieve the contractor from his obligation to complete the works or from any other of his obligations and liabilities under this contract.

15. Measurement and Terms of Payment: All items of work carried out by the contractor in accordance with the provision of the contract having a financial value shall be entered in the measurement book/ log book etc. as prescribed by the company so that a complete record is obtained of all works performed under the contract and the value of work can be ascertained and determined there from.

Measurement shall be taken jointly by the supervisory officer/Technical officer or his authorized representative and by the contractor or his authorized representative. Every measurement thus taken shall be signed and dated by both the parties.

In the event of failure on the part of the contractor to attend or send his authorized representative after receiving the information to countersign or record objection within a week from the date of measurement, the measurement taken by the Engineer-in-charge/controlling officer or his authorized representative shall be taken to be correct measurement of the work done.

Progressive R/A bills for erection work shall be processed against the prayer of the contractor, for an amount of minimum 20% (twenty percent) of the erection part or as deemed justified by the Controlling Officer shall be released against certification by the Controlling Officer after deducting the amount already paid or other amounts as may be applicable as per contract & statutory rules. The bill shall be released within 45 (forty five) days of its submission if all formalities as per terms of contract is maintained. The final bill shall be released on completion of the work in all respect and fulfillment of all contractual obligations by the contractor.

If it is obligatory under the provision of Income Tax Act 1961 and Goods & Service Tax (GST) Act and subsequent amendments to deduct tax at source then the same will be deducted from the bills as applicable. The Contractor is required to follow the building and other Construction Worker's Welfare Act, 1996. Registration of his establishment under section-7 of the building and other Construction Worker's (Regulation and condition of Service) Act, 1996 is to be made after the contract is awarded. 1% cess towards BOCWW Act, 1996 will be deducted from its total amount of each bill. For these deductions certificate will be issued as per rules.

In respect of supply of plant and equipment (including mandatory spare parts), the payments shall be made in the following manner. Seventy percent (70%) of the Ex-works of materials delivered at contractors' storage location (declared with the bid), within sixty (60) days after receipt of invoice and on submission of following documents:

- i) 6 Copies of supplier invoice showing contract no. goods description, quantity, unit price and total amount.
- ii) 6 copies of detailed packing list identify contents of each package.
- iii) Insurance Policy/certificate.
- iv) Manufacturers/supplier's warranty certificate.
- v) Factory inspection report of materials issued by the employer in the form of Dispatch Authorization.
- vi) Proof of GST payment and e-way bill along with invoice.
- vii) Certificate from the site officer on the specified format indicating that the material is required sequential to related erection and civil activities.

Balance payment will be made on submission of bills with relevant documents after completion of the project.

The company reserves the right to recover/ enforce recovery of any overpayments detected after payment as a result of post- payment audit or technical examination or by any other means, notwithstanding the fact that the amount of disputed item, if any, of the contractor exceeds the amount of such overpayments and irrespective of the fact whether such disputed claims of the contractor are subject matter of arbitration or not. The amount of such overpayment may be recovered from subsequent bill, under the contract, failing that from contractor's claim under any other contract with the company or from contractor's security deposit or from the amount retained or the contractor shall pay the overpayment on demand. All payments shall be made against submission of GST prescribed invoice incorporating GSTIN number, SAC Code and other necessary particulars.

16. Risk & Coverage: The Company (WBSEDCL) will be in no way held responsible/liable for any accident/mishap, if caused to any personnel of the agency during execution of work. The contractor shall ensure for workmen's compensation as per W.C. Act with an insurer approved by the owner and shall confirm such insurance during the contract period that any persons employed by him on the work are covered by insurance and shall produce to the concerned authority such policy or policies of insurance and receipt for payment of the current premium. If the contractor fail to effect and keep in force the insurance which he may be required to effect under the terms of the contract then and in any such case the owner may effect and keep in force any such insurance and pay such premium or premiums as may be necessary for the purpose and from time to time deduct the amount so paid by the owner as aforesaid from any money due or which may become due to the contractor or recover the same as a debt due from the contractor.

17. Controlling Officer: The Regional Manager, Malda Region Office, Malda shall be the Controlling Officer of the work. You shall execute the work in consultation with the controlling officer or his authorised representative.

18. Technical Officer: The Superintending Engineer (E)/ Divisional Engineer (E), Malda Region Office, Malda or as assigned by controlling officer will be the Technical Officer for the Electrical Works & Assistant Engineer(Civil) Malda Region Office Malda will be the Technical Officer for the Civil works

19. Paying Officer: The Manager (F&A), Malda Region Office, Malda shall be the paying authority for work.

20. Nodal Officer: The Manager (HR&A), Malda Region Office, Malda shall be the Nodal Officer for the work. You shall have to intimate the Nodal Officer about the date of payment to several classes of labour employed by you and shall have to arrange, if desired by the Nodal Officer, for payment of wages to several classes of labour employed by you in presence of departmental officials at work site on prescribed dates. You shall have to arrange for issuance of employment card in such form as may be prescribed by the Nodal Officer in respect of several classes of labour employed by you from time to time. You shall have to submit the P.F. Code compliance report along with other statutory obligations of labour laws in respect of several classes of labour employed by you at the site of work at regular intervals to the Nodal Officer/Controlling Officer of the work.

21. Supervising Officer: The Divisional Manager, Malda Division Office, Malda, or as assigned by controlling officer of the work will be the supervising officer.

22. Goods and Service Tax: Goods and Service tax has not been included in the contract amount. The Goods and Service Tax will be applicable as per prevailing rate and statute. You shall keep WBSEDCL indemnified in case any action is taken against WBSEDCL by the competent authority on account of contravention of any of the provisions of Goods and Service tax by you. You may be required to submit documents towards compliance of Goods and Service Tax Act as per statute.

23. Indemnity Bond: You shall have to submit an Indemnity Bond in the prescribed format within 15(Fifteen) days from the date of issue of the Letter of Award.

24. The Building and other construction workers (Regulation of Employment and conditions of service) Act'1996 and the Building and other construction workers Welfare Cess Act'1996 : An amount equal to 1% (one percent) of the construction cost will be deducted from the R.A. Bills/ Final bill on account of "The Building and other construction workers (Regulation of Employment and conditions of service) Act'1996 and The Building and other construction workers Welfare Cess Act'1996" apart from other statutory deductions.

25. Agreement: You shall have to execute a formal agreement on non-judicial stamp paper of appropriate value with the WBSEDCL as per prescribed form for due observance, fulfilment and performance of the contract as early as possible. Till such agreement is executed, you shall be bound by the terms and conditions of the tender documents in response to which you submitted your tender and all other relevant correspondences and this order. The Controlling Officer will sign the agreement.

26. Clearance of Site: The site must be cleared by the contractor from time to time by removing rubbish, debris etc. as accumulated during the work and on completion the whole site must be left in a clean and tidy condition to the satisfaction of Engineer-in-Charge or his representative.

All other terms and conditions will be governed by NIT No: 09/Departmental (2025-26), Date: 19.11.2025, Bid document, General condition of contract, technical specification and revised purchase policy of WBSEDCL.

Please acknowledge the receipt of this order and convey your acceptance within 7(seven) days from date of receipt of the order.

Enclosure: 01. Priced Schedule of works (including Supply of electrical items, erection of Electrical works)
02. Proforma for Performance Bank Guarantee, Agreement & Indemnity Bond.

Sd/-
(Soumen Das)
SE & Regional Manager
Malda Region, WBSEDCL

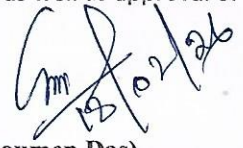
to: RM/MRO/Tender/Dept/ 1235 (1-13)

Date: 18.02.2026

Copy to:-

1. The Director, WBSEDCL, Vidyut Bhawan, Saltlake, Kolkata-91
2. The Executive Director, WBSEDCL, Vidyut Bhawan, Saltlake, Kolkata-91
3. The Chief Engineer (Dist-North), WBSEDCL, Siliguri.
4. The Zonal Manager, Malda Zone, WBSEDCL
5. The AGM (HR&A), Chief Engineer (Dist.-North) Office, WBSEDCL.
6. The AGM (F&A), Chief Engineer (Dist.-North) Office, WBSEDCL.
7. The Superintendent Engineer (E)/Divisional Engineer (E), Malda Region office, WBSEDCL
8. The Manager (HR&A), Malda Regional Office, WBSEDCL.
9. The Manager (F&A), Malda Regional Office, WBSEDCL-The Expenditure shall be booked against Work Order No:11L/UG/25/0082 Dated: 10.11.2025 of the Chief Engineer (Dist.-North)
10. The Divisional Manager, Malda Division, WBSEDCL.
11. The Assistant Engineer(Civil), Malda Region Office, WBSEDCL
12. Case File Copy.

N.B. This LOA has been issued as per recommendation of STC vide Meeting No. 11.01 dated 12.02.2026 as well as approval of the Chairman & Managing Director, WBSEDCL dated 16.02.2026



(Soumen Das)
SE & Regional Manager
Malda Region, WBSEDCL